

		While the court ordered Plaintiff to file a status report at least 10 court days before the hearing (see 4/10/26 Minute Order), the court file does not contain any status report. Plaintiff should be prepared to dismiss the action or show good cause why the case should not now be dismissed. (See Cal. Rules of Ct., rule 3.1385(c)(2) [if dismissal not timely filed, “the court must dismiss the entire case unless good cause is shown why the case should not be dismissed”].)
9	Simpson vs. Bendy	<u>Motion to Consolidate Cases</u> The court GRANTS Plaintiff DAVID L. SIMPSON’s motion to consolidate this action with the unlawful detainer action <i>Brian Bendy v. David L. Simpson</i>, Case No. 2026-01562015-CL-UD-CJC (the “UD Action”) for all purposes. RJN: Defendant Brian R. Bendy’s (“Bendy”) request for judicial notice is GRANTED. (Evid. Code § 452(d).) However, for those documents for which Bendy seeks judicial notice that were filed by the individual litigants in the UD Action, judicial notice is limited to the fact that those documents were filed and not as to the truth of the contents of those documents. (<i>Richtek USA, Inc. v. UPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 658.) When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). In <i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, the court found that “[w]hen an unlawful detainer proceeding and an unlimited action concerning title to the property

are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions.” (*Id.* at 385.) The summary procedures of an unlawful detainer action apply in routine causes in which the tenant has failed to pay rent, not a case involving dispute over title. (*Id.* at 387-90.) In *Martin-Bragg*, the defendant in the UD action filed an unlimited complaint for quiet title, alleging that he was the “rightful owner” of the real property and that title to the property had been transferred to the plaintiff in the UD action, (his former girlfriend), to be held “in trust” for defendant. (*Id.* at 371.)

Ordinarily the only triable issue in a UD proceeding is the right to possession, along with any incidental damages that result from the property's unlawful detention. (*Larson v. City and County of San Francisco* (2011) 192 Cal.App.4th 1263, 1297.) However, when allegations in the pending UD and unlimited civil actions demonstrate that the UD plaintiff's title might be insufficient to justify relief, and that the UD defendant might be entitled to quiet title to the disputed property, a trial court should consolidate the two actions. (*Martin-Bragg*, 219 Cal.App.4th at 385; accord *Berry v. Society of St. Pius X* (1999) 69 Cal.App.4th 354, 364; *Mehr v. Superior Court* (1983) 139 Cal.App.3d 1044, 1047-50; *Asuncion v. Superior Court* (1980) 108 Cal.App.3d 141, 147.)

The instant action and the UD action involve common questions of law or fact. Defendant Bendy argues that *Martin-Bragg* does not apply because that case “involved a genuinely complex beneficial-ownership dispute, in which the occupant claimed that the record owner held title in trust for him, requiring adjudication of legal and equitable ownership. (Opp’n Br. at p. 8, lines 21-23.) But as the UD Court already found however, both this case and the UD case involve the “complicated issue of title.” (7/29/26 Minute Order, p. 2.)

According to Plaintiff’s FAC filed on 7/28/26, Plaintiff acquired title to the Property by Grant Deed in May 2007 and has lived in the property since then. (FAC, ¶ 3.) Defendant Niguel Summit Community Association (the

“HOA”) recorded a Notice of Delinquent Assessment / Assessment Lien against the property on 6/12/23 and voted to authorize non-judicial foreclosure of the lien in August 2023. (FAC, ¶¶ 16-18.) Defendant MLG Assessment Recovery LLC was the foreclosure trustee that handled the foreclosure process. (See FAC, ¶¶ 12, 23.) Plaintiff disputes he was served with the foreclosure notices but alleges he attempted to tender the redemption amount. (FAC ¶¶ 18-22.) Defendant Bendy purchased the property at the trustee’s sale on 12/22/25. (FAC, ¶ 23.)

Plaintiff alleges the Pre-Lien Notice was not sent by certified mail to Plaintiff as required by law, and the Notice of Default was not properly served on Plaintiff. (FAC, ¶ 24.) The FAC alleges that Bendy is not a bona fide purchaser because he purported to acquire the property at a fraction of its fair market value and had actual or constructive knowledge of the procedural defects. (FAC, ¶ 37.)

Also according to the FAC: Plaintiff requested the redemption price on 1/8/26 and made subsequent requests, but did not receive a complete statement until Wednesday 3/18/26, three days before the statutory redemption deadline that fell on Saturday 3/21/26. (FAC, ¶¶ 38-40.) The 3/18/26 statement was addressed to the HOA and allegedly did not fix a certain redemption price. (FAC, ¶ 41.) The deadline for Plaintiff to act was automatically postponed from a Saturday to the next Monday – 3/23/26. (FAC, ¶ 44.) MLG’s records show that MLG received \$6,000 in payments from Plaintiff dated 3/21/26.

“When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions.” (*Martin-Bragg*, 219 Cal.App.4th at 385.)

Accordingly, the court **GRANTS** the motion and orders the following cases consolidated for all purposes: (1) *David L. Simpson v. Brian R. Bendy et al.*, Case No. 30-2026-

01572068-CU-OR-WJC and (2) *Brian Bendy v. David L. Simpson*, Case No. 2026-01562015-CL-UD-CJC.

The court designates *David L. Simpson v. Brian R. Bendy et al.*, Case No. 30-2026-01572068- CU-OR-WJC, as the lead case and all further documents must be filed under the case number and caption of the lead case.

All subsequent documents must be filed only in the lead case. All documents filed in the consolidated case must include the caption and case number of the lead case, followed by the case number of the other consolidated case. (Cal. Rules of Ct, rule 3.350(d).)

Bendy asks the court to condition consolidation on Plaintiff 1) making an initial payment of over \$43,000 to account for the amount Bendy paid toward the senior deed of trust and certain maintenance expenses, 2) paying \$5,512.20 in advance for each month Plaintiff remains in possession of the Property (calculated from \$183.74 per day), and 3) posting a separate undertaking of six months of the property's occupancy in the amount of \$33,073.20. (Opp'n Br. at pp. 12-13.)

The UD Court previously ordered Plaintiff to pay the reasonable rental value of the property for some time. (Bendy RJN, Exh. 7 ["The Court orders the Defendant to pay Mr. Bendy the reasonable rental value of the property, which is \$176.07 per day for the duration of the stay issued by this Court, which is August 28, 2026, totaling \$5,282.10 plus \$211.15 in HOA fees for a total amount of \$5,493.25. The court orders that Mr. Simpson is to make the payment of \$5,493.25 no later than 5 PM Friday, July 31, 2026, in certified funds to Mr. Bendy. The funds may be delivered to Mr. Bendy care of his counsel at the Ryan Firm, 2603 Main Street, Suite 1225, Irvine, CA 92614."]; see also RJN, Exh. 1 ["The Court orders the Defendant to pay the reasonable rental value plus the monthly HOA fee, which totals \$183.74 per day, for the period from April 11, 2026, to July 28, 2026 (\$183.74 x 109 days), for a total of \$20,027.66. In addition, because the stay continues to the next court date of September 22, 2026, the Court orders the reasonable rental value plus the HOA cost of \$183.74